M/S Shah Alloy Limited vs State Load Dispatch Centre & Ors on 17 March, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Dated: 17th March, 2011

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

IA No. 23 of 2011 in
DFR No. 1947 of 2010

M/s Shah Alloy Limited .... Appellant (s)

Versus
State Load Dispatch Centre & Ors. ... Respondent (s)

Counsel for the Appellant (s) : Mr. Nikhil Goel

ORDER

Admittedly, this Appeal has been filed as against the Order passed by the Commission on 29.10.10 in the review petition dismissing the same confirming the main Order passed on 30.03.2010. It is submitted that already an Appeal has been filed against the main Order dated 30.03.2010.

As already held by this Tribunal in many matters, this Appeal as against the Order passed in review petition dismissing the same is not maintainable.

Therefore, the Application as well as the Appeal is dismissed.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

Ts/Ks